

Smt. Sudha Malviya v. State of U.P.

Allahabad High Court · Division Bench · 28 July 2017 · Writ-C No. 2940 of 2017 · **Writ disposed; billing dispute relegated to clause 6.5**

HEADNOTE

A writ challenging electricity bills and a recovery certificate on the plea that no connection was ever given, and that recovery followed without bill or notice, is not decided on merits. The dispute is to be raised before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. If the application is filed within ten days, that authority shall decide it within six weeks; coercive recovery stays till then.

FACTUAL SUMMARY

Smt. Sudha Malviya challenged recovery of electricity charges for a house in Gopipur Dehat, Gyanpur, district Bhadohi. She said she had applied for a residential connection but not pursued it, there were no poles or lines to the house, she did not reside in the village, and a recovery certificate issued at a third party's instance without bill or notice. The licensee said she had objected on a Janta Darshan day and inquiry justified the recovery. Coercive steps had been stayed on 20 January 2017.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing dispute forum

HOLDING

A dispute over electricity bills and recovery of consumption charges, including a plea that no connection was ever given, is to be raised before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005. The writ was disposed of with a direction that if such an application is filed within ten days, the authority shall pass an appropriate order within six weeks, and no coercive recovery shall be taken till then.

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PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ challenging electricity bills and a recovery certificate on the plea that no connection was ever given, and that recovery followed without bill or notice, is not decided on merits. The dispute is to be raised before the competent authority under Clause 6.5 of the Electricity Supply Code, 2005..

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NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER HAD BEEN GIVEN AN ELECTRICITY CONNECTION OR RESIDED IN THE VILLAGE

Merits of the billing and recovery dispute left to the Clause 6.5 authority ¶ 1

NOT DECIDED — VALIDITY OF THE RECOVERY CERTIFICATE ISSUED WITHOUT PRIOR BILL OR NOTICE

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